

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Austria

Organization or entity responsible for the preparation of the report:

Federal Ministry of Education, Science and Research

Name of contact person: Sylvia Schrittwieser-Tschach

Email and telephone number of contact person: sylvia.schrittwieser-tschach@bmbwf.gv.at

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

X No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

X No, not considering ratification. Please explain why:

The main objectives and measures proposed in the Convention or Recommendation have been already implemented in Austria.

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☒ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ No

☒ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Cf. relevant questions below.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

X In pre-primary education (including early learning and care)

X In primary education

X In secondary education

X In technical and vocational education and training

X In higher education

X In adult education and alternative learning

- Please indicate the relevant legal provisions:

General measures for inclusive education on the basis of the national constitutional law:

Federal Constitutional Law: Article 7: All nationals are equal before the law. Privileges based upon birth, sex, class or religion are excluded. No one shall be discriminated against because of his disability.

Federal Constitutional Law: Article 14 Abs. 5a: Democracy, humanity, solidarity, peace and justice as well as openness and tolerance towards people are the elementary values of the school, based on which it secures for the whole population, independent from origin, social situation and financial background a maximum of educational level, permanently safeguarding and developing optimal quality. In a partnership - like cooperation between pupils, parents and teachers, children and juveniles are to be allowed the optimal intellectual, mental and physical development to let them become healthy, self-confident, happy, performance-oriented, dutiful, talented and creative humans capable to take over responsibility for themselves, fellow human beings, environment and following generations, oriented in social, religious and moral values. Any juvenile shall in accordance with his development and educational course be led to independent judgement and social understanding, be open to political, religious and ideological thinking of others and become capable to participate in the cultural and economic life of Austria, Europe and the world and participate in the common tasks of mankind, in love for freedom and peace.

Federal Constitutional Law: Article 14 Abs. 6: [...] Admission to public school is open to all without distinction of birth, sex, race, estate, class, language and religion, and in other respects within the limits of the statutory requirements. The same shall apply accordingly to kindergartens, day homes and student hostels.

Federal Constitutional Law: Article 14 Abs. 7a: The compulsory school attendance is at least nine years and also compulsory vocational school attendance exists.

Federal Constitutional Law: Article 14 Abs. 10: In matters pertaining to the free attendance of schools, and the relationship between school and the churches (religious societies) including religious instruction at school, the National Council, in so far as matters pertaining to universities and tertiary-level education institution are

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

not concerned, can vote federal legislation only in the presence of at least half the members and by a majority of two thirds of the votes cast. [...]

Gender Equality:

§ 4 School Organisation Act (Schulorganisationsgesetz): equal access to school (e.g. for all sexes)

§ 9 Abs. 6 Z 8 and 12 Higher Education Act (Hochschulgesetz 2005): equal treatment of all sexes

National minorities:

Minority School Act for Carinthia and Minority School Act for Burgenland: (bilingual) education is guaranteed in Slovenian/(Burgenland-)Croatian/Hungarian

Further legal bases: Section V of Part III of the State Treaty of Saint-Germain-en-Laye, Article 7 of the State Treaty of Vienna, Article 8 of the Federal Constitution and the Charter for Regional and Minority Languages of the Council of Europe

People on the move:

§ 4 School Organisation Act: equal access to school

§ 8h School Organisation Act, § 18 Abs. 14 and 15 School Education Act (Schulunterrichtsgesetz): language classes for newcomers (Deutschförderklassen, -kurse)

§ 18 Abs. 12 School Education Act: language exchange

§ 1 Compulsory Schooling Act (Schulpflichtgesetz 1985): compulsory education for all permanent resident children in Austria (9 school years)

People with disabilities:

§ 8ff Compulsory Schooling Act: procedure for detection of special needs in education

§ 22 School Organisation Act: special schools

§§ 9 Abs. 2, 21a Abs. 3, 28 Abs. 4, 34 Abs. 2, 52 Abs. 3 School Organisation Act: inclusion of disabled children in regular schools

§ 9 Abs. 6 Z 14 Higher Education Act: special attention to the needs of people with disabilities

Students from poor households:

§ 5 School Organisation Act, § 14 Federal Act on the Principles for the Establishment, Maintenance and Closing of Public Compulsory Schools (Pflichtschülerhaltungs-Grundsatzgesetz): primary and secondary education is free of charge

Student Aid Act (Schülerbeihilfengesetz 1983): school and accommodation grants; care and overnight accommodation contribution; extraordinary support for hardship cases

Federal Act of Financing the Digitalization of School Education (Bundesgesetz zur Finanzierung der Digitalisierung des Schulunterrichts): discharge of the contribution to the purchase of digital devices for poor households

§ 9 Abs. 6 Z 13 Higher Education Act: equality of social opportunity

Universities:

§ 42 Federal Equality Act regulates, that no applicant to a degree programme at a university may be discriminated against irrespective of their origin, their sex, race, social standing, class and religion.

§ 2 Z 9, 10 and 11 Universities Act: Guiding principles to be observed by the universities in pursuance of their objectives are (among others): Gender equality; Equality of social opportunity, special attention to the needs of the handicapped

§ 3 Z 9 Universities Act: Within their sphere of action, the universities fulfil following tasks (among others): gender equality, and the advancement of women.

§ 13 Abs. 2 Z 1 lit. g Universities Act: Performance agreements concluded by the individual universities and the Federal Government contain also social goals, such as measures to improve social permeability, to increase the proportion of women in leadership positions at universities as well as measures aiming to promote the social dimension in teaching to include underrepresented groups in higher education.

§ 41 Universities Act: All university bodies shall make efforts to achieve a balanced representation of men and women at work in all areas of university activities.

§ 42 Abs. 1 Universities Act: Each university has to establish a working group on equal opportunities responsible for combating gender discrimination as well as discrimination on the basis of ethnicity, religion or conviction, age or sexual orientation.

§ 43 Abs. 1 Z 2 Universities Act: An arbitration board rules on complaints by the working group on equal opportunities with regard to discrimination on the basis of gender, ethnicity, religion or conviction, age or sexual orientation through decisions of university governing bodies.

§ 58 Abs. 11 Universities Act: For students with disabilities the requirements stipulated in the curricula shall be modified, making the educational goal of the chosen programme attainable.

§ 59 Abs. 1 Z 12 Universities Act: Students have the right to be examined to an alternative method of they suffer from a disability which makes it impossible for them to take an examination in the prescribed manner and the other method does not limit the content and standards of the examination.

§ 59 Abs. 3 Universities Act: Working students and students who are unable to study full time due to child care or similar care commitments and can thus only devote part of their time to their studies shall be entitled to notify the university of the times at which they have special needs in respect of courses and examinations. Wherever possible universities shall take into account special needs in their course and examination timetabling.

§ 76 Abs. 3 Universities Act: When setting the examinations dates, the most important holidays of the legally recognised churches and religious societies shall be taken into account.

§ 92 Abs. 1 Z 6 Universities Act: Students if they have a disability of at least 50% do not have to pay tuition fees.

§ 4 Abs. 1 University of Applied Sciences Act: Students fulfilling the subject-relevant requirements shall be admitted to university of applied sciences degree programmes irrespective of their sex, social background, ethnicity, religion or conviction, age, sexual orientation and nationality.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

See above

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- X In adult education and alternative learning

- Please provide details:

Pre-primary education:

Agreement pursuant to Art. 15a B-VG between the federal government and the provinces on elementary education for the kindergarten years 2022/23 to 2026/27.

Adult education and alternative learning:

Agreement pursuant to Art. 15a B-VG between the federal government and the provinces on promotion of educational measures in the area of basic education as well as educational measures to catch up on compulsory school leaving certificates for the years 2024 to 2028.

☒ Combatting discrimination in terms of curriculum:

- X In pre-primary education (including early learning and care)
- X In primary education
- X In secondary education

- X In technical and vocational education and training
- X In higher education
- ☐ In adult education and alternative learning

- Please provide details:

Pre-primary education:

Bundesländerübergreifender Bildungsrahmenplan

file:///C:/Users/zugu/Downloads/200710_Elementarp%C3%A4dagogik_Publikation_A4_WEB-4.pdf

Werteleitfaden: Werte, leben, Werte bilden

https://www.integrationsfonds.at/fileadmin/user_upload/Werteleben_Wertebildern_OEIF.pdf

Primary, secondary education, technical and vocational education and training:

Curricula contain educational goals to prevent discrimination, e.g. as interdisciplinary competences.

Curricula for students with disabilities

§ 37 Abs 3a School Education Act (Schulunterrichtsgesetz 1986), Exam Regulations (Prüfungsordnungen): barrier-free exams, alternative tasks

Higher education: § 58 Abs. 11 Universities Act: For students with disabilities the requirements stipulated in the curricula shall be modified, making the educational goal of the chosen programme attainable.

§ 59 Abs. 1 Z 12 Universities Act: Students have the right to be examined to an alternative method if they suffer from a disability which makes it impossible for them to take an examination in the prescribed manner and the other method does not limit the content and standards of the examination.

- ☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- ☒ Legislation provides for inclusive education for all
- ☒ Policy measures aim to enhance inclusion in education for all
- ☒ Teachers are trained on inclusive education¹⁶ and to value diversity
- ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance
- ☒ Other:
- ☒ Multiple and flexible learning pathways¹⁷ are provided for
- ☒ Curricula and teaching methods are inclusive in design¹⁸
- ☒ Multilingual and intercultural education is supported

The general decree “Reflective Gender Education and Equality” (Circular Nr. 21/2018)

Anti-discrimination and gender equality are fundamental principles enshrined in Austrian constitutional law, which are also reflected in the central regulations for the teaching system.

A central frame of reference for the consideration of the principle of anti-discrimination and gender equality is provided by the general decree “Reflective Gender Education and Equality” (Circular Nr. 21/2018) and the corresponding curriculum regulations for compulsory schools, general secondary schools and vocational middle and secondary schools.

This general decree provides schools with a framework for the implementation of the overarching theme (former teaching principle) “Reflective Gender Education and Equality” on the different levels of teaching and learning in the school context. It contains suggestions on how issues of gender equality can be taken into account in public schools – against the background of a pluralistic society characterized by religious, cultural and social diversity – on the subject and teaching level as well as on the level of social relationships. The teaching principle aims to contribute to the development of a professional and reflective approach to the gender dimension in schools, which are shaped by their heterogeneous environments.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Supporting the implementation of the general decree “Reflective Gender Education and Equality” (Circular Nr. 21/2018):

- **Integration into controlling instruments:** As part of their 2020/21 (measure 5.1.) and 2023/24 (measure 2.2.) resource, target and performance plans, the education directorates developed plans for implementing the circular based on a template. Two contact persons for reflective gender pedagogy and equality were nominated in each education directorate to support the implementation of the circular.

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are ‘entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education’ ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

The measure is also part of the gender equality strategy for the school sector and anchored in the WIST ((Federal) Impact-oriented management -BVA 2024) as part of the BMBWF gender equality measure.

- **Integration into quality management:** Not only were the central contents and objectives of the circular anchored in the quality framework for schools, but a questionnaire for teachers on internal school evaluation was also created on the basis of the contents of the circular and published on the IQES platform. (Links: quality framework: <https://www.qms.at/qualitaetsrahmen/der-qualitaetsrahmen-fuer-schulen> / questionnaires: <https://www.iges.net/oeffentlich/S222-at> <https://www.iges.net/oeffentlich/S223-at>)

- **Integration into the new curricula:** gender relations and issues of equality reach into schools in many ways or are reflected in them (e.g. working and professional environments, choice of school type, stereotypical attributions). For this reason, reflective gender education has also been anchored in the new competence-oriented curricula (since the 2023/24 school year) as an "overarching topic" for primary and secondary level 1. All pupils - regardless of their social, cultural or religious background - should have the opportunity to critically examine gender issues and equality topics, as well as their own norms and values. Among other things, this can contribute to broadening their own life and career perspectives (beyond gender stereotypes).

Furthermore, competence goals have been defined that learners should achieve at the end of primary and secondary level 1.

Primary level competence objectives: Pupils can ...

- explain terms such as "prejudices" and "role stereotypes" using examples from their own lives and experiences (e.g. attributions of ability), form their own opinions and express them.
- communicate with each other without prejudice and address role stereotypes in everyday situations.
- know that the right of gender equality is enshrined in Austrian law and that the state must protect these rights.
- develop confidence in their own abilities and interests, express these and are not discouraged by gender-specific prejudices and stereotypes.

Secondary level 1 competence objectives: Pupils can ...

- explain terms such as "gender stereotypes", "discrimination", "equal opportunities" and "sexism" using examples from their own lives and experiences (e.g. attributions of ability, behavioral norms, income differences, sexual violence) and develop their own positions on these topics.
- explain the terms "women's movement" and "gender equality policy" in simple terms and establish a connection to certain achievements in gender equality policy (e.g. voting rights, access to equal education, laws against sexual violence).
- Develop confidence in their own abilities and interests and pursue them consistently without being discouraged by gender stereotypes.

- communicate with each other without prejudice and show civil courage in situations characterized by sexism and discrimination.

- argue the objectives with which the principle of equal rights is anchored in Austrian law.

- Brochure: Reflective gender education and equality with special consideration of the topic of "violence in the name of honor" - basic knowledge and challenges for schools

Based on the overarching theme of "Reflective gender education and equality", this handout addresses a specific form of gender-specific violence that schools can also be confronted with - violence in the name of honor in the context of honor-cultural milieus. It provides basic knowledge and aims to raise awareness of the issue. The author of the handout - Emina Saric - describes pedagogical challenges in dealing with this and provides suggestions based on her experience as head of the HEROES project - against violence in the name of honor in Styria.

- Creation of a guideline "Gender and diversity competence of school principals - basics and suggestions for the selection process"

The guidelines, which were drawn up in January 2023, are aimed in particular at members of the assessment commissions as part of the process for selecting school principals. All children and young people - regardless of their social background, gender, talent, migration background, first language or disability - should be given the opportunity to develop optimally. In this respect, school must be a place where discrimination, sexual harassment and bullying, both towards learners and towards school staff, must have no place in terms of anti-discrimination (federal and state equal treatment laws). On the one hand, the guidelines are intended to provide basic legal and substantive knowledge; on the other hand, they are intended to raise awareness of the issue and offer suggestions for the assessment and evaluation of applicants for the position of head teacher with regard to their "gender and diversity competence".

- Creation of a guideline "Reflective gender education and equality in teaching materials" (2023)

The circular "Reflexive Gender Education and Gender Equality" and the corresponding curriculum regulations for compulsory schools, general secondary schools and vocational middle and secondary schools form a central frame of reference for the consideration of the principle of anti-discrimination and gender equality.

The guidelines are intended to provide assistance for those persons involved in analyzing, testing and approving teaching materials, i.e. in particular the members of the so-called expert commissions. However, people who develop, write and publish teaching materials should also receive suggestions on how to design their products in line with the criteria mentioned in the guidelines, for example to counteract discriminatory and/or stereotypical content in teaching materials.

Award for theses - Possanner @School-Prize

The Federal Ministry of Education, Science and Research awards outstanding pre-scientific work at Academic Secondary School (AHS) and diploma theses at Colleges for Higher Vocational Education (BHS) on the topics of "Gender Equality / Gender Justice / Gender Research" with reference to the general decree Nr. 21/2018 "Reflective Gender Education and Equality".

Due to a two-year interval in the award, two baccalaureate years can apply. The possanner@school main prize is endowed with 1,500 euros and the 7 recognition prizes with 500 euros each.

The prize is named after Gabriela Possanner (1860-1940; the first female doctor to practice in Austria) and in 2023, the prize was awarded on December 5 as part of the Gender Studies

Day. The idea behind it is to motivate as many young people as possible to deal with issues of gender equality and equal opportunities.

§ 58 Abs. 11 Universities Act: For students with disabilities the requirements stipulated in the curricula shall be modified, making the educational goal of the chosen programme attainable.

§ 59 Abs. 1 Z 12 Universities Act: Students have the right to be examined to an alternative method of they suffer from a disability which makes it impossible for them to take an examination in the prescribed manner and the other method does not limit the content and standards of the examination.

§ 19 Abs. 2b Universities Act: The statute of a university may provide regulations concerning the use of foreign languages in courses and examinations as well as for writing academic theses.

Pre Admission to degree programmes: In case that proof of knowledge of the German language – if required for the successful continuation of studies – cannot be furnished, students are offered special language university programmes for further education.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Other relevant general measures, including gender equality

- | | |
|--|--|
| ☐ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☐ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☐ Providing positive or affirmative action measures | ☐ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Providing financial incentives and fellowships | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☒ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☐ Teachers are trained to combat stigmatisation ¹⁹ | |
| ☐ Other: | |

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²⁰ ‘ Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong’ (Cambridge Dictionary).

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Teaching principle (directive No. 21/2018) „Reflexive gender Education and Equality (2028)“ addresses different forms of gender stereotypes and sexism and addresses teachers, teacher trainers, headteachers and the entire school administration.

[Rundschreiben Nr. 2018-21 - Rundschreibendatenbank des BMBWF](#)

- (Advanced) training course in reflective gender education and equality in the context of heterogeneous living environments (ongoing since 2020)

The circular issued by the BMBWF in 2018 (Circular No. 21/2018) forms the central reference framework for this university course, which is organized by the BMBWF in cooperation with the PH Stefan Zweig/Salzburg and the PH Vienna as well as the GB3_14 (nationwide working group of the chairs of the PH working groups for equal treatment issues). The course, which was held for the first time in 2020 and consists of six modules, was already offered three times and will take place for the fourth time in September 2024. It targets the following groups: Teachers of all school types, school principals, teachers in the field of teacher education, as well as stakeholders in the education directorates with an interest in passing on what they have learned in their own area of activity.

In total, the course comprises 9 ECTS and aims to enable graduates to build up the necessary knowledge and to develop and implement concrete awareness-raising formats in their own field of activity for various target groups to implement the decree.

Link: <https://phsalzburg.at/wp-content/uploads/2023/01/Curriculum-neu.pdf>

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- **Stereotypes**
- **Lack of sensibility**

Parents' rights and children's rights: One of the major challenges is the area of tension between parents' rights and children's rights. Parents from a strictly traditional and/or religious background often do not want their children to participate in sex education or swimming lessons or other activities that appear to go against their norms and values. The challenge is to ensure that all children have the same right to education, despite religious, traditional values and despite stereotypical thinking

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

This question cannot be answered with a clear *yes* or *no* according to the Austrian marriage law ("Ehegesetz"). The legal minimum age for marriage is set at 18 years. With the consent of the legal representative, marriages can be made in exceptional cases already at the age of 16 ([Ehegesetz §1 \(2\)](#))

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

On the basis of the Minority School Acts for Carinthia and Burgenland, bilingual education is offered in German/(Burgenland-)Croatian, German/Slovenian and German/Hungarian at

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

primary school level and (Burgenland-)Croatian/Slovenian/Hungarian education is offered at secondary school level. Furthermore, Romansh is offered as an optional subject in Burgenland. Further legal bases are Section V of Part III of the State Treaty of Saint-Germain-en-Laye, Article 7 of the State Treaty of Vienna, Article 8 of the Federal Constitution and the Charter for Regional and Minority Languages of the Council of Europe ratified by Austria.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

One challenge is the transition from primary to secondary level. In Carinthia, 2280 pupils were registered for bilingual education at primary schools in the year 2023/24, while only 608 pupils were registered at lower secondary level. There is still a discontinuity at the transition from primary to lower secondary level and the development is not satisfactory. The number of enrolments has stagnated or fallen slightly.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

²⁶ Supra note 15.

²⁷ Supra note 16.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|---|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ³² and bias |
| ☒ All administrative barriers to access education are removed | ☒ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ³⁰ | ☐ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

In addition to already above mentioned measures:

§ 60 Abs. 3 Universities Act: The rectorate of a university is entitled to waive the obligation to submit some documents of it is satisfied that it would be impossible or excessively difficult to furnish them within a reasonable period, and that the supporting documentation submitted is a sufficient basis for a decision.

§ 92 Abs. 1 Z 3a Universities Act: Students who are citizens of states aligned with the “Least Developed Countries pursuant to the DAC List of ODA Recipients do not have to pay tuition fees.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

²⁸ ‘Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards’ ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

Compulsory education for permanent resident children in Austria is laid down at Constitutional level. Specific measures for learning German are foreseen for pupils of non-German mother tongue or lack of knowledge of German ("Deutschförderklassen").

https://rundschreiben.bmbwf.gv.at/download/2024_05_beilage.pdf

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

Since 2015 Austria has been confronted several times with a huge influx of refugees. Adapting the structures in the system of education for these groups has been the main focus. Because of the quantity and the challenges regarding their individual background (no education, no knowledge of educational systems and structures, illiteracy in their mother tongue) no further no further modification has been implemented.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

As mentioned Austria has been confronted with a huge influx of refugees over last decade. Because of the quantity and the educational background of many refugees (very low level of education, challenges regarding the learning of German, cultural issues) Austria has implemented several measures to adapt the structures within of our system of education. So the quantity and the fact, that a further huge influx is taking place (influx of the families of refugees being in Austria since the crisis of 2015/16) the sheer quantity and the fact that further measures to integrate these pupils will be necessary are right now the biggest challenges.

People with disabilities:

- | | |
|---|---|
| ☒ Legislation provides for their right to education | ☐ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☐ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☐ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |

³³ Supra note 15.

³⁴ Supra note 16.

☐ Other

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

§ 58 Abs. 11 Universities Act: For students with disabilities the requirements stipulated in the curricula shall be modified, making the educational goal of the chosen programme attainable.

§ 59 Abs. 1 Z 12 Universities Act: Students have the right to be examined to an alternative method if they suffer from a disability which makes it impossible for them to take an examination in the prescribed manner and the other method does not limit the content and standards of the examination.

§ 92 Abs. 1 Z 6 Universities Act: Students if they have a disability of at least 50% do not have to pay tuition fees.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

☒ Financial incentives and fellowships for school enrolment are provided

☒ Teachers are trained to combat stigmatisation³⁵

☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education

☒ Curricula are rid of all stereotypes³⁶ and bias

☒ Positive or affirmative action measures are provided

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

School and accommodation grants; Relief of childcare fees for all-day schools; Care and overnight accommodation contribution; Financial support to participate in school events; Extraordinary support for hardship cases

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

³⁵ Supra note 15.

³⁶ Supra note 16.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

- Is compulsory and free of charge pre-primary education available?

X Pre-primary education is compulsory. Please provide the age of enrolment and duration:

Nationwide compulsory education for all children at the last year (at the age of 5) before entry to school

☐ Pre-primary education is **not** compulsory.

X Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

This last compulsory year is free of charge for 20 hours per week (except meals, special excursions etc).

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Agreement pursuant to Art. 15a B-VG between the federal government and the provinces on elementary education for the kindergarten years 2022/23 to 2026/27 and the 9 laws at provincial level that regulate the implementation of this agreement.

Almost 98% of all children at the age of 5 years attend pre-primary education in this last year before school. At the request of the legal guardians (parents etc.) children can be exempted for some reasons from the obligation to visit. These reasons could be disability, medical reasons, special educational needs or due to distance or difficult path conditions to reach the institution.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

The duration of primary education is 4 years, usually between the age of 6 and 10. Enrolment starts on 1 September following the child's sixth birthday

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Compulsory Schooling Act 1985 (Schulpflichtgesetz 1985):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009576>

Basic Act on the Maintenance of Compulsory Schools (Pflichtschulerhaltungs-Grundsatzgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009231>

School Organisation Act (SchOG – Schulorganisationsgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009265>

School Education Act 1986 (Schulunterrichtsgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009600>

School utensils such as exercise books, pencils etc. must be covered individually. For school events (such as sports weeks, project days/weeks etc.) or school-related events (e.g. competitions, contests, theatre visits) cost contributions for transport, accommodation, meals, admissions, courses etc. may be charged.

Private schools may charge tuition fees.

- What challenges were encountered in realizing primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☐ Disparity in learning outcomes |

☐ Low number of professionally trained teachers

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- Please elaborate. Brief quantitative information may be added.

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Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

The duration of lower secondary education is 4 years, usually between the age of 10 and 14
--

- Please provide the age of enrolment and duration of upper secondary education:

The duration of upper secondary education is whether 4 or 5 years, usually between the age of 14 and 18 or 19, depending on the type of school.	
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- Is lower and upper secondary education compulsory and free of charge?

X Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

X Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

X Upper secondary education is compulsory – only if the last year of compulsory education is completed at an upper sec. education institution.

☐ Upper secondary education is **not** compulsory.

X Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Compulsory Schooling Act 1985 (Schulpflichtgesetz 1985):
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<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009576>

Basic Act on the Maintenance of Compulsory Schools (Pflichtschulerhaltungs-Grundsatzgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009231>

School Organisation Act (SchOG – Schulorganisationsgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009265>

School Education Act 1986 (Schulunterrichtsgesetz):

<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009600>

School utensils such as exercise books, pencils etc. must be covered individually. For school events (such as sports weeks, project days/weeks etc.) or school-related events (e.g. competitions, contests, theatre visits) cost contributions for transport, accommodation, meals, admissions, courses etc. may be charged.

Private schools may charge tuition fees.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes x No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Duration of compulsory education in Austria is 9 years ("Schulpflichtgesetz"- Compulsory Schooling Act 1985). The Compulsory Training Act ("Ausbildungspflichtgesetz") stipulates that all youths who have not yet reached the age of 18 are required to engage in education and training after completing general compulsory schooling. This includes attending an academic or vocational upper secondary school, completing a dual education/training programme or attending a recognised vocational or training institution which prepares them for reintegration in continuing education and training.	
--	--

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |

☐ Other:

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

§ 91 Abs. 1 Universities Act: Degree students who are citizens of EU or EEA member states, degree students to whom Austria is obliged under other international treaties to accord the same rights to access to employment as Austrian citizens, degree students belonging to a

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

group of persons according to the Decree on Groups of Persons, such as students from third countries residing in Austria already for at least 5 years before first admittance to a university study programme or students with a status as refugees for example, and students from third countries who have been granted another kind of residence permit than that for students da have to pay tuition fees in an amount of 363,36 Euro per semester, but only if they exceed the prescribed duration of a bachelor's, master's or doctoral programme by more than two semesters.

§ 91 Abs. 2 Universities Act: Other degree programme students from third countries who have been granted a residence permit for students have to pay tuition fees in an amount of 726,72 Euro per semester.

§ 78 Universities Act: Passed examinations and other academic achievements, as well as scientific, artistic and professional activities, other vocational or non-vocational qualifications may be recognised as laid out in that regulation.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes

- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☒ Other:

Due to different providers of upskilling and reskilling courses, another important initiative to improve learning opportunities is the provision of independent, free and confidential educational counselling and guidance.

- Please elaborate further on the measures taken:

In order to facilitate the access to education and training different forms of education and training as well as educational guidance for adults are offered throughout Austria. For example the „Level up - Erwachsenenbildung“ (Austrian Initiative for Adult Education) is offering free of charge courses for all adults across Austria. Its objective, is to enable adults who lack basic skills (literacy, numeracy, digital competences) or never graduated from a lower secondary school to continue and finish their education.

Other examples are the educational guidance networks („Bildungsberatung Österreich“) in every province, where interested persons can get information about learning and upskilling/reskilling opportunities as well as information about (public) funding for learners. Both initiatives are funded by the federal government, the provinces and the European Social Fund to offer free educational services across Austria.

§ 64 Abs. 1 Universities Act, § 4 Abs. 5 Universities of Applied Sciences Act: Possession of the general university entrance qualification is also certified by an Austrian certificate of the TVE Diploma Examination as well as an Austrian certificate testifying the right to study a certain group of studies at a university, a university college of teacher education or a university of applied sciences (University entrance qualification examination)

§ 56 Universities Act, § 9 Universities of Applied Sciences Act: Continuing Education University Programmes, Continuing Higher Education Programmes

§ 78 Universities Act: Recognition of Examinations, other academic achievements, activities and qualifications (see also 2.3. above)

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

BD-EG, § 5: Bildungsdirektionen-Einrichtungsgesetz, § 5; BGBl. I Nr. 138/2017 vom 15.9.2017; Inkrafttretensdatum 1.1.2019
<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=20009982&FassungVom=2020-08-31>

SQM-VO: Verordnung des Bundesministers für Bildung, Wissenschaft und Forschung betreffend das Schulqualitätsmanagement; BGBl. II Nr. 158/2019 vom 13.6.2019
<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=20010681>

SchUG, § 56. (2): Schulunterrichtsgesetz, § 56. (2); BGBl. I Nr. 29/2011 vom 20.5.2011
<https://www.ris.bka.gv.at/GeltendeFassung.wxe?Abfrage=Bundesnormen&Gesetzesnummer=10009600>

The universities are subject to supervision by the Federal Government. This shall comprise monitoring of compliance with the acts, decrees and the universities' statutes (legal supervision)

§ 58 Universities Act: Curricula shall contain a qualification profile. Curricula of bachelor's and master's programmes shall be designed in a way that studies at foreign recognized post-secondary educational institutions are possible, whereby care shall be taken to ensure that this is possible without loss of study time. Curricula shall be designed in a way that the allocation of ECTS credits correspond to the actual workload.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☒ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Teacher education in Austria is divided into the teaching qualification at primary level and the teaching qualification at secondary level (secondary schools or colleges for higher vocational education). Public and private university colleges of teacher education offer teaching qualifications at primary level, which have been established as three-year (six-semester, workload 180 ECTS credits) bachelor's (Bachelor of Education, BEd) and two-year (two-semester, 120 ECTS credits) master's (Master of Education, MEd) degree programmes.

[RIS - Hochschulgesetz 2005 - Bundesrecht konsolidiert, Fassung vom 08.05.2024 \(bka.gv.at\)](https://www.ris.bka.gv.at/DocView.aspx?doc=12567&cid=12567&docid=12567)

The QAC (QSR) was found in 2013 on a formal, legal basis (the current rules can be found in the Austrian Federal Act on the Organisation of University Colleges for Teacher Education 2005 - Hochschulgesetz, HG 2005). The council's priority duty is the external quality assurance of teacher training in Austria to ensure high quality standard and an academic support/scientific guidance of the development of teacher training programs that can meet Austrian demand for teachers.

<https://www.qsr.or.at/?content/der-qsr/index>

§ 13 Abs. 2 Z 1 lit g Universities Act: Performance agreements concluded by the individual universities and the Federal Government contain also social goals, such as measures to increase the proportion of women in leadership positions at universities and the promotion of female junior researchers. The university also has to develop measures aiming to promote the social dimension in teaching and to include underrepresented groups in higher education.

§ 14 Universities Act: The universities shall develop their own quality management system to assure the quality and the attainment of their performance objectives which covers all tasks and the whole spectrum of their services. The performance of teaching staff shall be regularly evaluated, at least once every five years.

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |

☐ Lack of training centres

☐ Other:

- Please elaborate. Brief quantitative information may be added.

Nationwide strategy of a wide-ranging package of measures with the aim of sustainably covering demand for teachers and ensuring and sustainably guaranteeing the quality of teaching in Austria's schools. Among other things, the strategy promotes a positive image of school and, in this context, a new and appreciative image of the teaching profession, which will flow into future developments and reforms. In addition, as many suitable and motivated young people as possible, as well as new target groups such as career changers, should be attracted to the profession. Teacher training is also to be further developed, both structural and in content.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

Citizenship Education in Austrian Schools rests on 3 pillars:

- it is included in curricula as an independent subject or as a combined or cluster subject;
- it takes effect in the frameworks of school partnership and legal student representation;
- it is an interdisciplinary teaching principle

[Politische Bildung \(bmbwf.gv.at\)](https://bmbwf.gv.at)

⁴¹

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

Furthermore educational concepts such as Education for Sustainable Development and Global Citizenship Education make a substantial contribution to develop and strengthen democracy and human rights. Particularly within the UNESCO Associated Schools Network with 95 schools in Austria, these concepts are vital parts of the curricula. Moreover, a UNESCO-Chair for Global Citizenship Education is currently being established at the (public) University of Klagenfurt

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. [Please specify:](#)

The Austrian Constitution guarantees the right to establish and manage private schools and the parents' right to home schooling. If a private school fulfils the required provisions it can be run as private school under public law. Therefore school-leaving qualifications of private schools are considered equal to those of public schools.

Private Universities Act, Act on Quality Assurance in Higher Education and University of Applied Sciences Act: Provide regulations for accreditation requirements for Universities of Applied Sciences and Private Universities and their degree programmes as well as regulations about organisation of the institutions and their staff.

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Religious education at school is compulsory for all pupils who belong to a publicly recognised religious community. Parents or legal representatives can register or deregister their children for religious education. In upper secondary schools, Ethics is offered as a compulsory alternative subject. Religious education teachers are seconded by the church or religious community and are paid by the state.

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

X Registration

X State monitoring and inspections

X Qualifications of teachers

X Health and sanitation

X Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

X Infrastructure

X Curriculum

☐ Student-teacher ratio

☐ School fees

X School closures

☐ Other

- [Please elaborate:](#)

Art 17 of the Austrian Constitution defines that the academic freedom [...] to teach in public educational institutions, [...] or to establish such institutions, is a fundamental civil right of every citizen who has demonstrated his/her ability to do so by due legal process.
Further regulations are defined by the Act on Private Schools.

- [What challenges were encountered in non-state education provision?](#)

☐ Low quality educational infrastructure and materials

☒ Issues in terms of equity and inclusion

☐ Low number of professionally trained teachers

☐ Weak government regulatory and monitoring capacity

☐ High student – teacher ratio

☐ Other:

- [Please elaborate. Brief quantitative information may be added.](#)

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

SchulDigiG § 1: The purpose of this federal law is to enable information and communication technology-supported teaching (ICT-supported teaching) for all pupils from the 5th grade onwards in all types of schools (school types and subject areas) with a legally regulated school type designation. The aim is to create the pedagogical, didactic and technical prerequisites.

§ 76a Universities Act: special provisions for the use of electronic communication tools in examining

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

8-Punkte-Plan: <https://www.bmbwf.gv.at/Themen/schule/zrp/dibi/8punkte.html>

Curriculum Digitale Grundbildung and Teacher Training at the University Colleges of Teacher Education: <https://www.bmbwf.gv.at/Themen/schule/zrp/dibi/dgb.html>

Open Educational Resources – Eduthek: <https://eduthek.at/>

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☐ Monitoring results are made public. [Please provide the link:](#)

- ☐ Monitoring processes are participatory, inclusive and regular.
- ☐ Sector-wide and multisector approach is adopted to education governance.
- ☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☐ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness

of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: